STANDARD OPERATING PROCEDURE			I-3220
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 10/18/21	DATE REVISED **01/14/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE CRIMINAL INVESTIGATIONS	RESOURCES N.R.S 29-404.02			
SUBJECT AFTER-HOURS ARREST WARRANTS	CROSS REFERENCE I-3200 SEARCH WARRANTS FOR STRUCTURES			

I. Purpose:

The purpose of this policy is to establish guidelines for After-Hours Arrest Warrant and Temporary Felony Notification (TFN) requests when the courts are closed and there is an urgent need for an arrest warrant or TFN.

II. Policy:

Generally, the obtaining and serving of After-Hours Arrest Warrants and TFNs shall be coordinated by the Investigations Division and Deputy County Attorneys (DCA). Notification shall also be made to the ADC.

III. Definitions:

A. URGENT NEED: Circumstance wherein the DCA and deputy agree there is an immediate emergency in which a suspect is alleged to have committed an offense in which if not expeditiously detained would likely result in: 1) loss of life to others; or 2) flight of the suspect beyond territorial boarders of Nebraska and no legal remedy for detention otherwise exists.

B. TEMPORARY FELONY NOTIFICATION (TFN): A TFN is a notification set by Dispatch that alerts Dispatch to the law enforcement interest in the individual. It appears in NCIC for 48 hours and then purges from NCIC automatically. This is not approved by a Judge and should not be referred to as a "warrant".

IV. TFN Procedure

: TFN's should only be used in rare circumstances and typically after regular business hours. Those "rare circumstances" include but are not limited to when the deputy has a reasonable basis to believe that the individual may cross jurisdictional lines, if there is a threat to someone's safety, or if there is a likelihood that the individual may reoffend prior to being arrested. TFNs should be considered **before** an after-hours arrest warrant.

A. To request a TFN, the law enforcement officer must first seek approval from the County Attorney's Office on-call attorney.

1. This approval can be done via a telephone conversation and does not require an affidavit.

2. In discussing the TFN, the deputy should provide, at minimum, the following information:

a) Name of the Individual

b) The crime(s) for which the individual will be arrested

c) Basis for the probable cause to arrest

d) Explanation as to why the TFN is needed

B. If the On-Call County Attorney approves the TFN, the deputy shall call dispatch, request a supervisor, and provide the following information:

1. Name of the Individual

2. Crime for which the individual will be arrested

3. Name of the on-call County Attorney who approved the TFN.

C. **Arrest Procedures for those detained under a TFN**: If a subject who was detained by an agency within Nebraska under a TFN, Deputies should follow the procedures of arrest without a warrant in P-4700 Arrest-Citations**.** This includes, transporting the person to the Sarpy County Jail, completing a citation, and warrantless arrest affidavit.

1. If the subject was detained outside of Nebraska, an after-hours arrest warrant must be filed so the extradition process can begin.

V. **Arrest Warrant Procedure:** In cases where there is an urgent need for the issuance of an arrest warrant, the following procedures shall be followed:

A. Any deputy may request an after-hours arrest warrant, with the approval of his or her supervisor, and after notification has been made to the ADC and on-call investigator.

B. The on-call investigator may be requested to assist with the application or simply be notified if assistance is not required.

C. The deputy or on-call investigator assisting shall notify the DCA and provide them with the reason for the urgent request. It the DCA agrees with the necessity of the request, the deputy shall:

1. Gather all necessary information, including the facts making the after-hours arrest warrant an urgent need, and complete the Affidavit for Arrest.

2. Provide the completed affidavit to his or her supervisor for review and approval.

D. After approval, the deputy completing the affidavit shall recontact the DCA and provide them the Affidavit for Arrest.

1. Deputies shall assist the DCA in providing any additional requested documentation by the judge.

2. Deputies shall not contact a judge for after-hours arrest warrants without the assistance of the DCA.

E. If a search warrant would likely lead to an arrest under Neb. Rev. Statute 29-404.02 , the Deputy and the DCA will seek the search warrant instead of the after-hours arrest warrant (see I-3200 SEARCH WARRANTS FOR STRUCTURES).